

its agents in determining priority of, collecting, enforcing the obligations or lender's interest in the collateral, including but not limited to, reasonable attorney's fees, collection costs and legal costs with interest, when permitted by law, whether or not suit is filed, in prejudgment and post judgment enforcements..." (Declaration of Gabriel P. Herrera ("Herrera Decl."), ¶ 2.)

On or about March 2, 2022, the defendants executed the agreement. the agreement states that defendants "agree[] to pay all costs of collection, with or without suit, including actual out of pocket expenses incurred by [plaintiff] and its agents, including attorney's fees for litigation or bankruptcy and collection agency fees." (Herrera Decl., ¶ 3.) The account application contains an attorney's fees provision. (Herrera Decl., ¶ 3, Exh. 2 pg 2.) Under California Civil Code § 1717, the prevailing party in an action on a contract containing such a provision is entitled to recover reasonable attorney's fees.

Plaintiff states it incurred costs of \$986.20 employing registered process servers on October 10, 2024; October 14, 2024; October 21, 2024; and July 21, 2025. Plaintiff states it incurred \$450.91 of filing and motion costs. The total amount of costs requested by the plaintiff is \$1,437.11. (Herrera Decl., ¶ 16.) However, plaintiff has not followed requisite procedure to obtain costs, which requires the timely filing and service of a memorandum of costs within 15 days of any party's service of notice of entry of judgment. (Cal. R. Ct., rule 3.1700(a).) Here, notice of entry of judgment was served on December 9, 2025. To the extent the court may consider plaintiff's motion to constitute a memorandum of costs, it was filed more than 15 days after service of notice of entry of judgment. Based on this procedural deficiency, the court declines to award costs as requested by plaintiff.

Plaintiff requests attorneys' fees for 61.4 hours at hourly rates between \$300 and \$350 an hour in the total amount of \$18,512.80. A breakdown of time and work performed is included in the declaration submitted by plaintiff's counsel. (See Herrera Decl.) The court notes this was a straightforward collections case and plaintiff's motion for summary judgment was unopposed.

The court has carefully reviewed the billing statements provided by plaintiff. The court accepts the respective billing rates of counsel as comparable to prevailing billing rates on similar matters in the community. However the court finds that not all of the time incurred on matters in this case is reasonable. The court awards plaintiff attorneys' fees in the amount of \$14,500.

Plaintiff's motion for attorneys' fees is granted in part. Plaintiff is awarded attorneys' fees in the total amount of \$14,500. Plaintiff's request for costs is denied as untimely.

7. S-CV-0053711 City of Lincoln v. The Gathering Inn

Plaintiff's two motions to quash and motion to compel further responses are continued to **July 7, 2026 at 8:30 a.m. in Department 32** to be heard together with other motions in this matter by the **Honorable Trisha J. Hirashima**. Please note the change in department.